

Satish Kumar Sharma v. State of U.P.

Allahabad High Court · Single Judge · 1 August 2014 · WRIT - C No. 30219 of 2009 · **Writ allowed; assessment and s.127 orders quashed; remanded.**

HEADNOTE

Writ allowed. Final theft assessment dated 25.2.2008 and the Commissioner's Section 127 order dated 18.5.2009 were quashed as not consistent with *Ashok Kumar v. State of U.P.* 2008 (6) ADJ 660 (DB) and the procedure under the Electricity Supply Code, 2005. Matter remanded to the Assessing Authority for a fresh order in accordance with law.

FACTUAL SUMMARY

Vigilance checking at the petitioner's premises on 3 January 2008 allegedly found theft by direct connection of a 7.5 HP submersible pump. An FIR was lodged and Rs 16,000 taken as compounding. A provisional assessment of Rs 2,20,554 dated 18 January 2008 was made final on 25 February 2008 after treating the petitioner's objection as unsatisfactory. After credit of sums already realised, a 1958 Act recovery certificate issued for the balance. The Commissioner's Section 127 appeal was rejected on 18 May 2009.

HOLDING-UNITS

INTERPLAY · EA2003::127

s.127 appeal against theft assessment

HOLDING

A final theft assessment and the Section 127 appellate order dismissing the consumer's appeal, if not consistent with the procedure required by *Ashok Kumar* and the Electricity Supply Code, 2005 (adequate show-cause and a speaking assessment), are liable to be quashed on writ, with remand to the Assessing Authority for a fresh order in accordance with law. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE ALLEGED THEFT AND QUANTUM OF ASSESSMENT

Remanded to the Assessing Authority for a fresh order in accordance with law and *Ashok Kumar*. ¶ 5

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660			3-5	Referred